

WHACKY AUCTIONS

APP TERMS & CONDITIONS AND MASTER RULES OF AUCTION

Version 1.0 | Effective 12 September 2026

IMPORTANT

These are the standing app/bidder terms. For every live auction, Whacky Auctions must also publish an auction-specific Rules of Auction document/schedule with the required date, place, time, auctioneer, fees, inspection and reserve particulars at least 24 hours before commencement where the regulations require it.

IMPORTANT AUCTION RISK TERMS

Auction goods are sold in their disclosed condition to the fullest extent permitted by law; a soft close can extend the advertised closing time; a winning bid becomes binding when the sale is completed; non-payment may trigger lawful default remedies; and a bidder's own device/connectivity failure ordinarily does not undo a completed sale. Inspect and read the full listing before bidding.

These terms are intentionally drafted to protect Whacky Auctions' low-opening-bid, competitive online-auction model while preserving rights and obligations that South African law does not allow the business to exclude.

1. Parties, scope and acceptance

These Terms and Master Rules govern use of the Whacky Auctions website and mobile application and participation in auctions conducted by Whacky Auctions PTY LTD ("Whacky Auctions", "we", "us" or "our"). By registering, placing a bid or purchasing a lot, a user agrees to these Terms, the applicable auction-specific schedule, the lot description and any lawful notices displayed for that auction.

If an auction-specific schedule conflicts with these Master Rules, the auction-specific schedule prevails for that auction to the extent of the conflict, provided it is lawful and was made available as required before the auction.

2. Eligibility and bidder registration

Bidding is restricted to persons aged 18 or older who are legally capable of entering into binding transactions. A prospective internet bidder must register before bidding and provide the information required by applicable auction regulations, including full names, identification or passport number, age, physical address, IP address, account/login information and details of the means by which payment will be effected.

Whacky Auctions may require identity, address, authority or payment verification before activating or maintaining bidding privileges. A bid from an unregistered person is invalid. No fee is charged merely to participate in an auction; a refundable bidder deposit may be required where disclosed in advance.

A person bidding for another person must provide appropriate written authority. A person bidding for a company must provide authority on the company letterhead together with the required company resolution or other documentation reasonably required to verify authority.

3. Auction-specific information

Each auction or lot page will identify, as applicable, the auction date, start time, closing time, online place/URL, auctioneer, reserve status, opening bid, bid increment, buyer's premium, VAT treatment, payment deadline, inspection opportunity, collection/delivery arrangements, storage charges and any auction-specific terms.

The opening bid is not a representation of market value, replacement value or expected selling price. A deliberately low opening bid is simply the starting point for competitive bidding and does not remove a disclosed reserve price.

4. Reserve and no-reserve lots

Unless a lot is expressly identified as "without reserve" or "no reserve", it may be subject to a reserve price. A reserve lot is sold only if the reserve is met or the seller lawfully accepts the highest valid bid. If the reserve is not met, the lot may be recorded as unsold and may later be re-offered or sold by another lawful method.

A lot advertised as without reserve will be treated as such. Once bidding has opened on a no-reserve lot, the seller will not withdraw it in circumstances where the law prohibits withdrawal. Any right of the owner or auctioneer to bid must be disclosed in advance in the auction-specific rules; unless expressly stated, no such right is reserved.

5. Bids, increments and bidder responsibility

A bid is an offer to buy the relevant lot at the bid amount, subject to these Terms. The bidder is responsible for reviewing the lot description, photographs, condition information, fees and auction-specific schedule before bidding. Bidders must not share account credentials and are responsible for activity through their accounts unless they promptly notify Whacky Auctions of unauthorised access and the circumstances reasonably support that claim.

The platform may enforce minimum bid increments, which may vary by price band or auction. The current required increment displayed by the platform controls. Where two valid bids are for the same amount, the platform/server timestamp and auction record will determine priority, subject to correction of an obvious system error before completion of the sale.

6. SOFT CLOSE / ANTI-SNIPING RULE

Whacky Auctions uses a rolling soft close to give genuine bidders a fair opportunity to respond to late bids and to avoid last-second bid sniping.

- Default extension window: 2 minutes, unless a different period is expressly stated in the auction-specific schedule before bidding begins.
- If a valid bid is received during the final 2 minutes of a lot, that lot's closing time automatically extends so that 2 full minutes remain from the time of the latest valid bid.
- Every further valid bid placed during the then-current final 2-minute window triggers a further extension on the same basis. Extensions may repeat without a fixed maximum number.
- A lot closes only after the full soft-close window expires without a further valid bid and the platform/auctioneer records the lot as closed or sold.
- Soft close applies per lot unless the auction page expressly provides for a linked or staggered closing arrangement. The Whacky Auctions server clock and auction log are authoritative for timing and sequence, subject to correction of a proven system-wide error.

7. Bid retraction before completion

South African auction law permits a bid to be retracted before the sale is completed. A bidder wishing to retract a bid must use any retraction facility provided in the app or immediately contact Whacky Auctions before the lot is recorded as sold/closed. Whacky Auctions will process a lawful pre-completion retraction, but may suspend or restrict an account for repeated, abusive, collusive or bad-faith bid-and-retract conduct.

After the auctioneer/platform has completed the sale in the customary electronic manner, the successful bid is binding except where cancellation, refund or other relief is required by law or expressly permitted by these Terms. The general electronic-transaction cooling-off right in section 44 of the Electronic Communications and Transactions Act does not apply to auctions, subject always to any other non-waivable right that may apply.

8. When the sale is complete

Subject to any disclosed reserve and lawful seller acceptance, the highest valid bidder becomes the purchaser when the auctioneer or platform announces completion in the customary electronic manner, for example by displaying "SOLD", "WON", "CLOSED - WINNER" or an equivalent final status and recording the result in the auction record. A countdown reaching zero is not final if a valid soft-close extension has been triggered.

9. Buyer's premium, VAT and other charges

The total amount payable may include the hammer price, a buyer's premium, VAT where applicable, delivery/collection charges and storage or other charges expressly disclosed in advance. The applicable percentage or amount will be shown in the auction-specific schedule or lot page before bidding.

No undisclosed participation fee will be charged. Any fee or commission will be charged, received, earned or refunded only in the manner permitted by the Consumer Protection Act and auction regulations. Where movable goods are not delivered because the seller defaults, any buyer fee or commission that must by law be refunded will be refunded.

10. Payment

Unless the auction page states a different period, a successful bidder must make full cleared payment within 24 hours after the invoice is issued. Whacky Auctions may require immediate payment, a payment authorisation or a refundable deposit for selected auctions if disclosed in advance.

Goods will not be released until cleared payment and required verification are complete. Whacky Auctions may refuse cash, third-party payments or payment methods that create a reasonable fraud, chargeback, money-laundering or security concern, and may require the payer and registered bidder to match.

11. Inspection and condition of lots

A reasonable opportunity to inspect goods before the commencement of the auction will be offered without an inspection fee, at the time/place or by the booking method stated for the auction. Reasonable security rules may apply. A bidder who chooses not to inspect remains responsible for bidding with the available condition disclosures in mind.

To the fullest extent permitted by law, auction goods are sold in their disclosed condition, "as is" / voetstoots. Section 55 of the Consumer Protection Act does not apply to goods bought at an auction contemplated in section 45. Whacky Auctions therefore does not give an implied warranty that an auction lot is defect-free, fit for a particular purpose or in new condition unless an express written warranty is stated for that lot.

This clause does not exclude liability that may not lawfully be excluded, including liability for fraudulent or deliberate misrepresentation, prohibited inaccurate auction advertising, or non-delivery where Whacky Auctions or the auctioneer is legally responsible for delivery.

12. Descriptions, photographs and disclosed defects

Whacky Auctions will use reasonable care in preparing descriptions and photographs and will disclose known material condition information where reasonably available. Bidders must consider the entire listing, including all photographs and condition notes. Cosmetic appearance can vary with lighting, screen settings and camera perspective, and measurements may be approximate unless stated as exact.

If a material description error is discovered before a sale is completed, Whacky Auctions may correct the listing, pause or extend bidding, or withdraw/re-offer the lot where lawful. These Terms do not exclude liability for inaccurate information in auction advertising where the law prohibits such exclusion.

13. Collection, delivery and release

The purchaser must comply with the collection or delivery instructions stated in the auction. Unless otherwise stated, collection should occur within 3 business days after cleared payment. Identification and proof of purchase may be required before release.

Where Whacky Auctions agrees to arrange delivery, it remains responsible to the extent required by law and does not exclude liability for non-delivery. Where the purchaser appoints and controls a third-party carrier or collector, release to that authorised carrier may constitute delivery to the purchaser to the extent permitted by law.

14. Ownership and risk

Ownership in a lot passes only after full cleared payment and lawful delivery/release, unless applicable law requires otherwise. Risk generally passes on delivery or collection. Nothing in these Terms transfers risk prematurely where doing so would conflict with mandatory law.

15. Late collection and storage

If a purchaser does not collect within the disclosed collection period, Whacky Auctions may charge the storage amount or formula disclosed in the auction-specific schedule. If no storage charge was disclosed, Whacky Auctions will not invent a retrospective fixed fee, but may seek lawful recovery of reasonable proven costs where permitted.

After written notice and a reasonable opportunity to remedy prolonged non-collection, Whacky Auctions may exercise lawful remedies, which may include cancellation, storage, re-auction or recovery of permitted costs. The purchaser remains entitled to any balance or refund required by law after lawful deductions.

16. Purchaser default

A purchaser is in default if, without lawful excuse, the purchaser fails to pay by the deadline, fails required verification, dishonours or reverses payment, or fails to take delivery/collection after reasonable notice. Whacky Auctions may suspend the account, cancel the transaction where lawful, re-offer the lot and recover amounts permitted by law.

Any default fee or commission charged to a defaulting purchaser will not exceed the legal cap applicable to auctioneers, including the lesser of 10% of the purchase price or the total cost of advertising and conducting the auction plus reasonably incurred additional costs where the auction regulations impose that cap. Whacky Auctions reserves all other remedies that are lawfully available, but does not contract for penalties or waivers prohibited by consumer law.

17. Seller default and non-delivery

If the seller defaults and the purchased movable goods cannot lawfully be delivered, the purchaser will receive the refunds required by law, including refundable deposits and buyer fee/commission amounts where the auction regulations require their refund. Whacky Auctions does not exclude liability for non-delivery in an internet auction.

18. Technical failures and platform integrity

Whacky Auctions will maintain reasonable security and transaction controls for its online auction platform. If a verified system-wide failure, material timestamp fault or service outage materially affects bidding before a sale is complete, the auctioneer may pause, extend, reopen or re-run the affected lot to preserve a fair auction, provided the action is lawful and is recorded in the auction records.

A bidder's individual internet failure, battery failure, device malfunction, delayed notification, forgotten password or inability to access the platform is ordinarily the bidder's own risk and does not invalidate a completed sale. Bidders are encouraged to bid with enough time to account for connectivity delays.

19. Prohibited conduct

Bidders must not manipulate the auction, use false identities, place sham bids, engage in bid shielding, collusion, intimidation, automated abuse, coordinated bid suppression/inflation, payment fraud or unauthorised access. Whacky Auctions may reject invalid bids, suspend accounts, preserve evidence and report suspected unlawful conduct to relevant authorities.

20. Account suspension and restrictions

Whacky Auctions may suspend or restrict bidding privileges where reasonably necessary to protect auction integrity, comply with law, investigate fraud, enforce payment obligations or address material breaches of these Terms. A suspension does not by itself cancel an already completed lawful sale.

21. Auction records and privacy

Whacky Auctions and the auctioneer will maintain the bidders' record, vendor's roll and other prescribed auction records for at least the period required by law. Certain bidder names and bidder numbers may be open to inspection where auction regulations require this. Other personal information will be handled under the Whacky Auctions POPIA Privacy Notice and applicable law.

22. Complaints and disputes

Questions or complaints should first be sent to rugs.san88@gmail.com. Whacky Auctions will attempt to resolve genuine disputes reasonably and promptly. Nothing in these Terms prevents a consumer from using any complaint, ombud, regulatory, tribunal or court process available under South African law.

23. Governing law

These Terms and all auctions are governed by the laws of the Republic of South Africa, including the Consumer Protection Act 68 of 2008 and its auction regulations, the Electronic Communications and Transactions Act 25 of 2002 where applicable, and POPIA. Any clause must be read down to the minimum extent necessary to remain lawful and enforceable.

24. Changes to these Terms

Whacky Auctions may update these Master Terms prospectively. A change does not retroactively alter a completed auction. Auction-specific rules must be made available in the manner and time required by law, and any amendment after initial publication must be clearly identified as an amended version.

25. Contact details

Auction house / platform	Whacky Auctions PTY LTD
Physical address	497 Ontdekkers Road, Florida Hills, Gauteng, South Africa
Email	rugs.san88@gmail.com

26. Legal references

Prepared with reference to section 45 of the Consumer Protection Act 68 of 2008; regulations 18 to 31 of the Consumer Protection Regulations, 2011 (including the internet/electronic auction provisions); the Electronic Communications and Transactions Act 25 of 2002; and the Protection of Personal Information Act 4 of 2013.

This Master document is designed for Whacky Auctions' operating model but should be reviewed by a South African attorney experienced in consumer and auction law before commercial launch, particularly once the final payment flow, buyer premium, delivery model and appointed auctioneer are fixed.